

4.

CASE #	CASE NAME	HEARING NAME
CVME2511814	RIETA VS GARCIA	MOTION FOR LEAVE TO AMEND

Tentative Ruling: GRANTED; NO OPPOSITION FILED

5.

CASE #	CASE NAME	HEARING NAME
CVME2512122	CARCAMO VS SANDOVAL	DEMURRER

Tentative Ruling: OFF CALENDAR

6.

CASE #	CASE NAME	HEARING NAME
CVME2513330	HOLLOWAY VS RABINEAU	DEMURRER

Tentative Ruling: MOTION TO STRIKE DENIED

DEMURRER SUSTAINED WITHOUT LEAVE TO AMEND as to the 4th Cause of action.

On May 21, 2026, the Court reconsidered its earlier May 12, 2026, rulings on Defendant's motion to strike and demurrer, and ordered that the rulings be stricken on the ground that Defendant had not met its obligation to meet and confer in accordance with Code of Civil Procedure sections 435.5 and 430.41.

The Court continued the matters to August 04, 2026, and ordered Defendant to meet and confer. Defendant was to, 10 days before the continued hearing date, either vacate the hearing or file with the court a declaration stating whether Plaintiff agreed to amend the complaint or stating the means by which they met and conferred and identifying the specific objections to the motion which the parties were unable to resolve. In accordance with the Court's order, Defendant's counsel filed a declaration explaining that, despite multiple efforts to meet and confer by telephone, Plaintiff failed to cooperate by continuing to delay the call and failing to respond to counsel's follow-up requests. (See Declaration of Virginia Narian ¶¶ 7-12, filed on July 23, 2026.)

Under the statutory meet and confer provisions, Defendant may satisfy the requirement to meet and confer by filing a declaration stating "[t]hat the party who filed the pleading subject to demurrer or motion to strike failed to respond to the meet and confer request of the [demurring and moving] party or otherwise failed to meet and confer in good faith." (Code Civ. Proc., §§ 430.41(a)(3)(A)&(B); 435.5(a)(3)(A)&(B).) Here, this requirement was met

Deny.